

25AVCV00723 25AVCV00723

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-11

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Case Number: 25AVCV00723 Hearing Date: August 11, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

HENRY CORBETT,

Plaintiff,

v.

GENERAL MOTORS, LLC.; and DOES 1 through 10, inclusive,

Defendants.

Case Number 25AVCV00723

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 11, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is an action arising under the Song-Beverly Consumer Warranty Act (Song-Beverly Act). Defendant General Motors, LLC (Defendant) presently moves the Court for an Order compelling Plaintiff's compliance and appearance at deposition.

On June 9, 2025, Plaintiff Henry Corbett (Plaintiff) filed a complaint against Defendant, asserting five causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, (4) breach of the implied warranty of merchantability, and (5) fraudulent inducement – concealment. Plaintiff alleges that on November 30, 2022, Plaintiff entered into a warranty contract with Defendant regarding a 2022 Chevrolet Silverado, which was manufactured by Defendant, and that at the time of and after purchase, nonconformities to warranty existed within the express warranty period, which Defendant failed to remedy as required pursuant to the Song-Beverly Act. (Compl., ¶¶ 6, 11, 15.)

On August 18, 2025, Defendant filed a demurrer to the complaint.

On November 12, 2025, Plaintiff filed a first amended complaint (FAC) and Defendant's demurrer was subsequently withdrawn.

On December 18, 2025, Defendant filed a demurrer to the fifth cause of action for fraudulent inducement – concealment in the FAC.

On February 13, 2026, Defendant filed a motion for compliance to compel Plaintiff's appearance at a deposition.

On April 10, 2026, Defendant filed an ex parte application to continue trial and all related deadlines on the basis that it had been unable to take Plaintiff's deposition.

On April 22, 2026, Defendant filed the present motion for compliance and request for sanctions for Plaintiff's failure to appear for deposition.

On April 28, 2026, Defendant's demurrer to the FAC was sustained without leave to amend. Defendant's motion for compliance was also granted with monetary sanctions. The Court also granted Defendant's ex parte application for continuance of trial and all related dates, and trial was continued to January 22, 2027.

On April 29, 2026, Defendant filed an answer to the FAC.

On July 29, 2026, Plaintiff filed an opposition to the motion for compliance and request for sanctions. That same date, Plaintiff's counsel filed a motion to be relieved as counsel, asserting that counsel's firm had lost contact with Plaintiff.

II. Legal Standard

Standard for Motion to Compel Compliance – Code of Civil Procedure section 871.26, subdivision (c) provides that within 120 days after the filing of the answer or other responsive pleading, all parties to a civil action for restitution or replacement of a motor vehicle have the right to conduct depositions of (1) the plaintiff, and (2) the person most qualified to testify on the defendant's behalf. Code of Civil Procedure section 871.26, subdivision (j) requires the Court to sanction a plaintiff's attorney \$1,500.00 for failure to comply with the deposition provisions unless the plaintiff's attorney shows good cause.

III. Discussion

Application – Defendant moves to compel Plaintiff's attendance at deposition and testimony pursuant to Civil Code section 871.26 and \$1,500 in monetary sanctions against Plaintiff and his counsel, Strategic Legal Practices (SLP). (Motion, p. 5:12-14.)

On August 18, 2025, along with Defendant's first responsive pleading, Defendant served a notice of deposition for Plaintiff, noticing the deposition for September 8, 2025, and a meet and confer letter to Plaintiff's counsel. (Motion, p. 6:13-24, Stark Decl., ¶ 4, Ex. B.) On September 4, 2025, Plaintiff's counsel objected to the notice of deposition on the grounds that Plaintiff or his counsel were unavailable. (Motion, p. 7:3-8.) On February 6, 2026, Defendant sent an email to Plaintiff's counsel requesting dates for Plaintiff's deposition, and never received a reply from Plaintiff's counsel. (Motion, p. 7:9-11.) Defendant called Plaintiff's counsel on February 13, 2026, Defense counsel called Plaintiff's counsel and never received a call back from Plaintiff's counsel.

In opposition, Plaintiff's counsel requests that the motion be continued, as counsel has lost all contact with their client despite repeated and diligent attempts to reach him by phone, email, text, and written correspondence to his last known address. (Opp., p. 2:9-11.) Plaintiff's counsel asserts he cannot produce a client who cannot be located, and that counsel has filed a motion to be relieved as counsel, which is set for hearing on September 3, 2026, which directly impacts counsel's ability to comply with the requested relief and bears on who will be obligated to produce Plaintiff and be sanctioned for failure to do so. (Opp., p. 2:12-20.) Counsel's opposition states that beginning in 2026, counsel has been unable to secure Plaintiff's cooperation with discovery and secure dates for the initial deposition, and counsel is unable to produce Plaintiff for a deposition. (Opp., p. 3:7-16.) Counsel also asserts that he has established good cause for non-award of monetary sanctions and requests that they be denied. (Opp., p. 3:21-28.)

The Court has reviewed Plaintiff's counsel's motion to be relieved as counsel and finds that no just cause exists to continue or deny the motion for compliance or the request for monetary sanctions. Plaintiff's counsel states in the declaration in support of the motion to be relieved that "Since 7/16/2026," Plaintiff's counsel has attempted to contact Plaintiff, with no luck. But this is well after this Court ordered Plaintiff be produced for deposition. No reason is offered by Plaintiff's counsel as to why Plaintiff was not produced in the three months prior to contact being lost, what efforts counsel made to secure their client's compliance with discovery before July 16, 2026, or why counsel did not move for relief sooner than the filing of the opposition to the present motion, especially in light of the Court's previous Order compelling Plaintiff's deposition.

Defendant had a right to depose Plaintiff within 120 days of the filing of its demurrer. Here, the deadline for Plaintiff to submit to a deposition was December 16, 2025. Defendant moved the Court for an order compelling Plaintiff's appearance at the deposition, which was granted on April 28, 2026. Plaintiff has still failed to appear.

Accordingly, Defendant's motion for compliance and request for sanctions are GRANTED.

IV. Conclusion

Defendant's Motion for Compliance is GRANTED with monetary sanctions awarded against Plaintiff and his counsel in the amount of \$1,500. Plaintiff is to appear for deposition within ten (10) days of this Order.

Plaintiff's counsel is ordered to file a supplemental declaration no later than three court days before the August 25, 2026 hearing on Defendant's motion for terminating sanctions providing the Court with an update regarding the status of contact

with Plaintiff and Plaintiff's deposition.